



POLICE DEPARTMENT

January 3, 2008

MEMORANDUM FOR: POLICE COMMISSIONER

Re: Police Officer Gregory Larsen
Tax Registry No. 925583
Narcotics Borough Bronx
Disciplinary Case No. 83060/07

The above-named member of the Department appeared before me on October 24, 2007, charged with the following:

1. Said Police Officer Gregory Larsen, assigned to Narcotics Borough Brooklyn North, while on duty on January 28, 2006, at approximately 2120 hours, while arresting a person, identity known to the Department, in the vicinity of 470 Decatur Street, Kings County, did wrongfully use excessive force in effecting the arrest, in that he forced the left side of said person's head against the sidewalk and ground it against the cement, causing facial and eye injuries to said person.

P.G. 203-11, Page 1 – PROHIBITED CONDUCT

The Department was represented by Paul Gallagher, Esq., Department Advocate's Office, and the Respondent was represented by John Tynan, Esq.

The Respondent, through his counsel, entered a plea of Not Guilty to the subject charge. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

The Respondent is found Not Guilty.

EVIDENCEThe Department's Case

The Department called Detective John Talavera and Lorraine Nurse as witnesses.

Detective John Talavera

Talavera, a 12-year member of the service, is currently assigned to Narcotics Borough Manhattan North. He testified that on January 28, 2006, while working in Narcotics Borough Brooklyn North, he was assigned as the arresting officer in a buy and bust operation. He was also assigned as the driver that day for the field team supervisor, Sergeant Sbarra. At approximately 9:15 p.m., he received a radio transmission from one of the field team's undercover officers. The transmission indicated that a drug transaction had just taken place. The transmission also indicated that the perpetrator was a black female walking eastbound and carrying a white bag. When Talavera drove past the undercover officer, the undercover officer pointed out the perpetrator [later identified as Lorraine Nurse].

Talavera stopped Nurse in front of 470 Decatur Street. He described Decatur Street as a residential street of row houses with wrought iron fences that come up between waist-and-chest height. When Talavera and Sbarra identified themselves to Nurse, Nurse wrapped one of her arms around the fence and started to yell. Talavera informed Nurse that she was under arrest, and he instructed her to let go of the fence and stop resisting. Nurse struggled, and Talavera grabbed her arm. At that point, the Respondent and a Police Officer Galati arrived at the scene. According to Talavera,

Galati used his pepper spray, but the spray did not seem to affect Nurse in any way. When Nurse flailed her hand, Talavera lost his grip on her and she fell backward, hitting the back of her head on the sidewalk. At that point, Nurse began to flail her arms and legs.

Talavera testified that he placed his body on top of Nurse's legs to prevent Nurse from kicking. The officers decided to roll Nurse onto her stomach so that they could handcuff her. Because Nurse continued to kick even after being rolled over onto her stomach, Talavera got on Nurse's back. The rest of the field team worked to get Nurse handcuffed. During this period, the left side of Nurse's face was against the sidewalk. Because Talavera was focused on restraining Nurse's legs, he was not paying attention to what the other members of the team were doing. According to Talavera, Nurse "was pretty strong" and "was putting up quite a fight." Talavera testified that it took ten or 15 minutes to successfully handcuff her. Talavera described Nurse as "heavysset, about 180 pounds" and between 5'4" and 5'6" in height.

After Nurse was handcuffed, Sbarra pointed out to Talavera a small contusion on the back of Nurse's head. Talavera described the contusion as a bump with blood coming out of it. According to Talavera, the contusion was a result of Nurse's fall to the ground. Talavera stated that he did not notice injuries to Nurse's cheek and scalp line, but it was dark at the time of the incident and he did not extensively examine Nurse's condition. Sbarra called for an ambulance, and Nurse was transported to the hospital.

[Department's Exhibit (DX) 1 and 2 are photographs of the complainant while in the hospital on the night of the incident. They show scraping and bruising to Nurse's cheek, scalp line, and eye area. DX 5 is a copy of the Command Log for January 28, 2006.]

Talavera also stated that Sbarra entered in the Command Log that Nurse was intoxicated at the time of her arrest and suffered abrasions on her forehead.

On cross-examination, Talavera testified that he had his shield out when he initially approached Nurse. Before he or any other member of the service could lay a hand on her, Nurse grabbed onto the fence and started screaming. Talavera stated that, based on his experience, he believed Nurse was under the influence of narcotics at the time.

Talavera testified that it took four members of the service (Talavera, Sbarra, the Respondent, and Galati) to remove Nurse from the fence. He stated that while he thought it took approximately 15 minutes to successfully apprehend her it "could have been less" and acknowledged that she put up a pretty good fight. He explained that he did not want to hurt Nurse but only wanted to get her off of the fence. He further explained that he might have exercised more restraint than usual because he was dealing with a female perpetrator.

Talavera described himself as "a fairly strong guy" who is 5'10" tall and weighed 290 pounds at the time of the incident. Just prior to Nurse falling to the ground and hitting her head, Talavera had a grip on Nurse's wrist. Talavera and Nurse were pulling in opposite directions when Talavera lost his grip on Nurse. Nurse hit the ground "pretty hard," but she did not let up on the intensity of her struggle. During the struggle, a Detective DeLumen and a Detective (now Sergeant) Lisa arrived at the scene in the prisoner van. Nurse was successfully handcuffed only when the two additional detectives were present to assist. Talavera testified that at no point did he observe the Respondent

kick Nurse. He was not, however, looking in the Respondent's direction. He heard Nurse yelling, but he could not tell what she was yelling about.

[DX 3 is a certified medical record from Woodhull Hospital. The Triage Form (page 22E) indicates that Nurse sustained swelling, an abrasion, and hematomas to the left side of her face. The Emergency Record (page 22G) indicates that Nurse sustained an abrasion and contusion to the left side of her face. While this report also indicates that Nurse suffered from a retinal detachment, the Assistant Department Advocate conceded that the medical records do not support a conclusion that the detachment was caused by force used by the Respondent. The CT scan results (page 22J) indicate that Nurse suffered soft tissue swelling, but there was no evidence of a fracture of the orbital walls. This report also indicates that Nurse possibly suffered with a pre-existing intraocular process, such as Coats' Disease. On the Pre-Hospital Care Report (page 22C) that was prepared by the treating Emergency Medical Technician, Nurse was presumptively diagnosed with an abrasion caused by blunt force.

DX 4 is a certified medical record from Kings County Hospital Center. In the Emergency Physician Record (page 23H) and under the "Chief Complaint and History of Present Illness" (page 23 I)," that were prepared on January 29, 2006, indicate that Nurse is a "cocaine abuser" and used cocaine on the day of the incident.]

Lorraine Nurse

Nurse is currently incarcerated at Rikers Island. She explained that her incarceration stems from a September 2007 arrest for shoplifting. She testified that in total she has been arrested 76 times. According to Nurse, she has been convicted twice:

once for shoplifting, and once for possession of narcotics. She testified that at approximately 9:15 p.m. on January 28, 2006, she was walking to a friend's house on Decatur Street in Brooklyn. She had headphones on her ears, was listening to music, and could not hear what was happening around her when white men approached her. The men were dressed in jeans and sneakers, and Nurse did not know at first that they were police officers. She believed she was being kidnapped. She explained that she was scared because the white men looked out of place in the predominately black and Hispanic neighborhood. She testified that the officers were forceful and struggled with her. She stated that she was outnumbered and did not resist. According to Nurse, there were four or five police vehicles and eight or nine police officers present.

Nurse was standing when the officers first approached her, but she was thrown down to the ground within a few seconds. She explained that one of the officers threw her down to the ground on her stomach and proceeded to grind her head into the sidewalk. When Nurse was asked to look around the court room for the person who "grinded" her head into the cement she pointed to the Respondent. She then stated that "It is not only one; it is a lot of them." At that point she then looked around the court room and identified four more individuals seated in the trial room audience area as members of the service who participated in the physical struggle with her on the night of January 28, 2006.¹

Nurse was transported from the scene to Woodhull Hospital, where she remained for approximately 24 hours. While in Woodhull Hospital, Nurse received a CT scan and received treatment for bleeding to the front and back of her head. Nurse testified that she

¹ These audience members identified by Nurse are merely trial room spectators. They are neither respondents nor witnesses in this case.

suffered injuries to her forehead, back of the head, side of the head, and eye. She did not know exactly how the injury to the back of her head occurred. At approximately 10:00 p.m. or 10:30 p.m. on the day of the incident, members of the Internal Affairs Bureau (IAB) took photographs of the injuries she sustained. [The photographs were previously admitted into evidence as DX 1 and 2.] Nurse was transported from Woodhull Hospital to Kings County Hospital, where she remained until early February.

On cross-examination, Nurse testified that when she was arrested, she would give different names and birthdates to the police to avoid going through the system. She stated that she does not consume alcohol and has never used illegal drugs. When confronted with her criminal record, Nurse acknowledged that in 1981, she received a sentence of 45 days for shoplifting; in 1982, she received a sentence of 60 days for providing marijuana to prisoners; and in 1989, she received a sentence of 20 days for shoplifting. Nurse also acknowledged that she is currently on parole.

Nurse did not recall that in June 2006, she pleaded guilty to criminal sale of a controlled substance in the third degree and received a two-year sentence. She claims that she was not selling drugs in June 2006 but was set up by a police officer.

[Respondent's Exhibit (RX) D is a copy of Nurse's criminal history. It indicates that Nurse was arrested for the first time in January 1978. In total, she has been arrested 87 times. Her most recent arrest took place on September 23, 2007. In her 87 arrests, she has given the Department 45 different names, 26 different birthdates, and 17 different social security numbers. She has been the subject of 183 criminal charges, 12 of which were for resisting arrest. She has been convicted of 79 charges, one of which was a felony. She has been convicted upon a plea of guilty 13 times for criminal possession of

a controlled substance in the seventh degree. Her most recent conviction for criminal possession of a controlled substance occurred on June 7, 2007.]

After being confronted with her criminal history, Nurse testified that she had forgotten her prison record when she claimed on direct examination that she has only been convicted twice. Nurse further testified that she has never resisted arrest. She stated that the January 28, 2006 incident was the first time that she was beaten by police officers.

Nurse testified that she was sober when she was walking along Decatur Street that night. She was carrying a bag, but she could not remember what color the bag was. She stated that there were no drugs in the bag. She reiterated that she did not know at first that the men who approached her were police officers. According to Nurse, none of the members of the service had their shields displayed. She stated that the men immediately threw her to the ground without saying anything. She testified that she did not grab onto the fence, and it took five or ten minutes for the officers to get her into handcuffs. During that period, five of the nine officers present at the scene beat her up. The officers beat on her head, but she also sustained bruising on her back. She stated that even though the officers stomped and kicked her, she did not fight back and just curled up on the ground. She testified that there were people on the street who witnessed the incident, but she does not know their names. She told her attorney to go door-to-door to locate the witnesses, but she does not know if her attorney ever did so. According to Nurse, she started wearing glasses after the incident, but she cannot remember if she previously suffered with vision problems.

Nurse claimed that she received a scar on the left side of her face in the January 2006 incident. In September 1995, Nurse was arrested for prostitution and resisting arrest. Nurse stated that she does not remember being arrested for prostitution and does not recall that on approximately 15 occasions she was arrested for resisting arrest. [RX B consists of two photographs taken at the time of the September 1995 arrest. Although there is what appears to be a visible scar by Nurse's left eye in these photographs, Nurse claims that it is just dirt.]

Nurse further testified that she does not remember that in June 1999, she was arrested for criminal possession of a controlled substance in the seventh degree, pleaded guilty to the charge, and received a sentence of 90 days. [RX C is a copy of photographs taken at the time of the June 1999 arrest. Once again, Nurse claims that a visible scar on the left side of her face is just dirt.]²

On redirect-examination, Nurse testified that she did not have any injury to her forehead or swelling to her eye when she left for Decatur Street on the evening of January 28, 2006.

The Respondent's Case

The Respondent testified in his own behalf.

The Respondent, a seven-year member of the Department is currently assigned to Narcotics Borough Bronx. He testified that on January 28, 2006, he was part of a buy and bust team that was making narcotics arrests within the 81 Precinct. He was assigned

² RX A consists of four arrest photographs taken of Nurse in December 1984. In these photographs, there is no discernible scar on the left side of her face.

that tour to an unmarked rental car with Galati. At approximately 9:00 p.m. that day, he received a radio transmission with the description of an individual who had purchased narcotics from an undercover police officer. The description was, "female black, approximately five-six, 160 pounds, holding a bag." The description also included what the perpetrator was wearing. The Respondent was within two blocks of the location where the drug sale took place, and he headed in that direction. Within two or three minutes, he observed somebody who fit the description provided by the undercover officer. The individual [previously identified as Nurse] was walking in the vicinity of 470 Decatur Street.

The Respondent testified that when he arrived at the scene, Sbarra and Talavera were struggling to get Nurse off of a wrought iron fence that she had grabbed onto with both hands. The Respondent and Galati joined the struggle. At the time, the Respondent was wearing jeans, sneakers, and a hooded sweatshirt. According to the Respondent, he was also wearing a gun belt and a chain with his shield on it. He stated that the shield was displayed over his jacket in the middle of his chest.

The Respondent explained that Nurse would not give the officers her hands and was flailing her arms and legs. Based on his experience in the Narcotics Division, the Respondent believed that Nurse was on drugs. The Respondent verbally commanded Nurse to stop resisting and put her hands behind her back. After struggling for what may have been five minutes or longer, the Respondent used his pepper spray on Nurse. The pepper spray did not seem to affect her in any way. Meanwhile, the rest of the field team responded to the scene. The Respondent, along with several other members of the service, continued to pull Nurse from the fence. The Respondent stated that he was

pulling with all his force. When Nurse ultimately let go of the fence, she fell quickly down to the ground, hitting the front of her head on the sidewalk. Nurse became silent, and Sbarra immediately called for an ambulance. After a period of approximately 30 seconds, Nurse began to resist again, flailing her arms and kicking her legs. The Respondent testified that he provided physical control of Nurse's arms by pressing his foot down on the area of her left shoulder. He further testified that he used his arms, legs, and full body weight to control Nurse's arms. He stated that at no point did he go near Nurse's head. He explained that Nurse was noticeably bleeding from the crown of her head, and he tried to avoid contact with the open wound because he was not wearing gloves. He testified that at no point did he observe any other member of his field team kick or punch Nurse in the head near her eye. He explained that Nurse was clearly injured during the arrest, but the team used the minimum amount of force necessary to effect the arrest. The Respondent stated that he exercised restraint during Nurse's arrest because he was dealing with a female perpetrator. He explained that he would have punched the perpetrator had it been a male perpetrator resisting in the manner that Nurse resisted.

The Respondent testified that Nurse was extremely agitated when she was placed in the ambulance. He explained that even though Nurse was strapped down, she continued to be resistant. The Respondent did not have any further contact with Nurse that day. Since that day, however, Nurse has been arrested by the Respondent's field team for narcotics-related offenses on three occasions. The Respondent stated that although Nurse did not mention it, he was certain that she recognized him during her

subsequent arrests. The Respondent further stated that Nurse resisted arrest during all three of the subsequent arrests.

On cross-examination, the Respondent testified that he arrived at the scene 20 to 30 seconds after Sbarra and Talavera first approached Nurse. He stated that he used his pepper spray approximately a minute after he joined the struggle to restrain Nurse. He testified that he could not recall if Nurse fell on the back or front of her head. In an August 3, 2006 Civilian Complaint Review Board (CCRB) interview, the Respondent stated that Nurse landed on the back of her head. In order to handcuff Nurse, the officers would have needed to flip her onto her stomach.

The Respondent reiterated that he observed bleeding from the crown of Nurse's head. He testified that he did not observe injury to Nurse's forehead or swelling around her left eye. Upon review of the photographs that IAB took of Nurse on the night of the arrest, however, the Respondent conceded that the photographs do show injury around Nurse's hairline and left eye. He further conceded that Nurse's injuries must have been caused during the arrest. The Respondent explained that while he noticed that Nurse was bleeding, he did not notice which particular portion of her head was injured. The Respondent stated that the scar near Nurse's eye was a pre-existing condition. The Respondent could not recall whether or not he rode with Nurse in the ambulance. According to the August 2006 CCRB interview, however, he did in fact ride to the hospital with Nurse.

On redirect examination, the Respondent testified that before the CCRB interview, he did not have an opportunity to review any of the documents pertaining to

this case. He explained that because he reviewed some documents before trial, he has a better recollection of the incident now than he had at the CCRB interview.

FINDINGS AND ANALYSIS

The Respondent stands charged with wrongfully using excessive force in effecting Nurse's arrest, in that he forced the left side of Nurse's head against the sidewalk and ground it against the cement, causing facial and eye injuries.

Nurse and the Respondent painted two very different versions of the January 28, 2006 incident. Nurse testified that although she did not know at first that the men who approached her were police officers, she did not grab onto a fence or resist in any way. She further testified that she has never resisted arrest, was sober at the time of the incident, and has never used illegal drugs. According to Nurse, five members of the service beat on her head and stomped and kicked her without cause for a period of five to ten minutes. Nurse stated that during this period the Respondent threw her down to the ground and proceeded to grind her head into the sidewalk.

The Respondent, in contrast, testified that he had his shield displayed, and Nurse resisted arrest. According to the Respondent, Nurse grabbed onto a fence, flailed her arms and legs, did not comply with verbal commands, did not react to pepper spray, and continued to struggle even after falling hard from the fence onto the ground. The Respondent stated that Nurse seemed to be under the influence of narcotics, and it took more than four members of the field team to successfully handcuff her. He explained that he exercised restraint during Nurse's arrest because he was dealing with a female perpetrator.

For several reasons, the Respondent's version of the incident is more plausible than Nurse's. To begin with, Nurse is simply not a credible witness. She testified on direct examination that she has been arrested 76 times and has been convicted of two charges. When confronted on cross-examination with proof of her more extensive criminal history involving 87 arrests and 79 convictions including one felony, however, she claimed that she has forgotten her criminal record.

It is impossible to know whether Nurse was consciously attempting to downplay the extent of her criminal history on direct examination or whether she did, in fact, forget her criminal record. In any case, Nurse showed herself to be a provider of inaccurate testimony, which automatically places in doubt the veracity of her description of the January 2006 incident. This is especially true given the nature of her criminal history which included 12 arrests for resisting arrest and 13 convictions for criminal possession of a controlled substance in the seventh degree, most recently in June 2007.

In her 87 arrests, she has given the Department 45 different names, 26 different birthdates, and 17 different social security numbers in order to circumvent the system. Upon review of this criminal history, it becomes difficult to believe Nurse's claims that she has never resisted arrest or used illegal drugs, that she was sober at the time of the incident, and that five members of the service (including a supervisor) used force against her without cause. In fact, it becomes difficult to believe anything Nurse says.

Another reason the Respondent's version of the incident is more plausible than Nurse's is that the Respondent's version was corroborated by the evidence produced at trial. Sbarra entered in the Command Log that Nurse was intoxicated at the time of her arrest, and the medical records from Kings County Hospital indicate that Nurse was a

cocaine abuser and had used cocaine on the day of the incident. Moreover, the description that the Respondent provided of Nurse's demeanor and arrest was consistent with Talavera's testimony.

Based on the above, the Court accepts the Respondent's version of the incident as true. It is, therefore, in the context of this version that the Court analyzes whether or not the force used by the Respondent was excessive. It is important to note that Talavera's testimony and the Respondent's testimony differed on one significant detail. While Talavera stated that Nurse hit the back of her head on the ground when she fell from the fence, the Respondent testified that it was actually the front of her head that made contact with the sidewalk. Because photographs taken on the night of the incident clearly indicate that Nurse suffered scraping and bruising to her cheek, scalp line, and eye area, the difference in testimonies raises the question of whether the facial and eye injuries apparent in the photographs were caused by Nurse's fall or by force used against Nurse while she was on the ground after the fall. The Court holds that even if Nurse did fall on the back of her head and further suffered injuries to her face during the subsequent struggle on the ground, the evidence does not support a conclusion that the Respondent used excessive force. While the Respondent testified that he did not go near Nurse's head while on the ground, he conceded that he pressed his foot down on Nurse's shoulder and also used his arms, legs, and full body weight to gain control of Nurse's flailing arms. Nurse, who was likely high on drugs at the time, was resisting so powerfully that in addition to the Respondent at least four other members of the service were needed to restrain her. It is easy to imagine how the Respondent (or any other member of the field team involved in the violent struggle) could have somehow caused the injuries to Nurse's

face. (For that matter, it is easy to imagine how Nurse could have somehow caused the injuries herself.) The Department failed to prove, however, that the Respondent used any more force than was necessary to successfully effect a resisting Nurse's arrest.

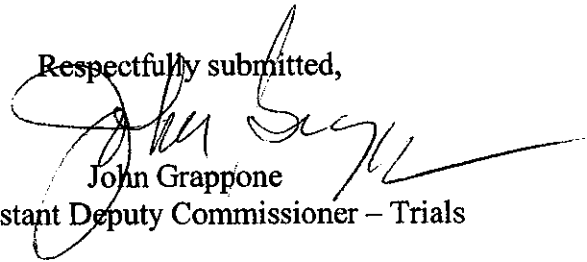
This conclusion is supported by the medical records: the Triage Form from Woodhull Hospital indicates that Nurse sustained swelling, an abrasion, and hematomas to the left side of her face; the Emergency Record indicates that she sustained an abrasion and contusion; the CT scan results indicate that she suffered soft tissue swelling; and the Pre-Hospital Care Report presumptively diagnosed her with an abrasion caused by blunt force. The injuries listed in these documents do not seem unusually serious for an arrest situation where a high, noncompliant perpetrator fell to the ground and prompted a physical struggle with at least five members of the service. In fact, the nature of Nurse's injuries is consistent with the Respondent and Talavera's testimony that they exercised restraint because they were dealing with a female. The field team resorted to physical force against Nurse only after she ignored verbal commands and failed to react to pepper spray. Furthermore, once physical force was initiated, five or more members of the service could have easily caused more severe injury to Nurse than was actually caused in the struggle.³ While Nurse claimed that her encounter with the Respondent left her with a scar on the left side of her face, the scar is apparent in arrest photographs that predate the incident. Nurse testified that what appears to be a scar in the old photographs is actually just dirt, but this explanation is undermined by the fact that the "dirt" appears in

³ While the Emergency Record indicates that Nurse also suffered retinal detachment, the Assistant Department Advocate conceded that the medical records do not support a conclusion that force used by the Respondent was a cause of the detachment. Likewise, the CT scan results indicate that Nurse possibly suffered with a pre-existing eye condition, such as Coats' Disease.

photographs from both 1995 and 1999. It defies credibility that in photographs taken four years apart Nurse would have dirt on her face in the exact same spot and formation.

Based on all of the foregoing, the Respondent is found Not Guilty.

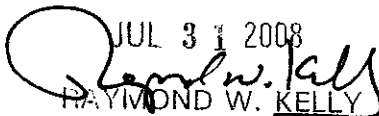
Respectfully submitted,



John Grappone

Assistant Deputy Commissioner – Trials

APPROVED

JUL 31 2008

RAYMOND W. KELLY
POLICE COMMISSIONER